

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 09/11/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless, by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
HEARING ON SUMMARY MOTION CONT'D FROM 8/21/26 PER TR
FILED BY: MERCEDES-BENZ USA, LLC

TENTATIVE RULING:

Defendant Mercedes-Benz USA, LLC's motion for summary judgment is **denied**. Their motion for summary adjudication is also **denied**.

Plaintiff sued various defendants for negligence and products liability due to injuries he suffered from a Mercedes-Benz sprinter van.

Plaintiff drove the van up a steep driveway in Orinda to deliver a package. (Undisputed Fact 2, 5.) He parked the van on a 28-31% slope and exited the van. (Undisputed Fact 4.) The van was

stationary when Plaintiff exited the van. (Undisputed fact 6.) Plaintiff testified that he put the van in park and he engaged the emergency brake before exiting. (Sanderson dec. ex. C: Parry Depo. 91:3-24.) Plaintiff also testified that the van automatically put itself in park when the driver's door opened. (Sanderson dec. ex. C: Parry Depo. 91:16-19; 93:6-9.) Plaintiff was outside the van when the van then began to move backwards. (Undisputed Fact 8.) Plaintiff attempted to re-enter the van and was injured in the process. (Undisputed Fact 9.) Had Plaintiff not attempted to re-enter the van when it began moving he would not have been injured. (Facts 9 and 10.) Plaintiff disputes the phrasing of the statement, but not the fact that if Plaintiff had stayed in one place when the van started moving he would not have been injured by the van.)

Plaintiff sued Defendant for negligence and products liability due to alleged defects in the braking system of the van. Defendant brings this motion for summary judgment, or alternatively summary adjudication of its tenth and twelfth affirmative defenses for superseding act and misuse.

Standard of Review

A defendant meets its burden on a motion for summary judgment by showing either that plaintiff's claims have no merit or that there is a complete defense to the claims. (Code of Civil Procedure § 437c(p)(2).) A defendant can show this by providing factually devoid discovery responses from plaintiff or by providing admissible evidence that negates Plaintiff's claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.)

Once a defendant has met its burden, the motion will be granted unless the plaintiff can show at least one triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p.843.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. § 437c(c).)

Summary Judgment: Causation

Defendant moves for summary judgment, arguing that there is a lack of causation here. In order to meet its initial burden, Defendant must present sufficient evidence that shows a lack of causation.

"As with other tort claims, the plaintiff must show the defect in the product was a legal or proximate cause of the plaintiff's injury. [Citations.]" (*Shih v. Starbucks Corp.* (2020) 53 Cal.App.5th 1063, 1067.) "'Ordinarily, proximate cause is a question of fact.... Nevertheless, where the facts are such that the only reasonable conclusion is an absence of causation, the question is one of law, not of fact.'" (*Modisette v. Apple Inc.* (2018) 30 Cal.App.5th 136, 152.) For proximate cause, "[t]he question is whether there is a sufficient connection between the risks created by defendants' conduct and the injury [] suffered to hold defendants responsible." (*Novak v. Continental Tire North America* (2018) 22

Cal.App.5th 189, 196.)

Defendant argues that there is no proximate causation here because Plaintiff's injury is too removed from any defect in the van and instead resulted from Plaintiff's attempt to re-enter the van. Defendant relies primarily on *Shih* and *Modisette*.

In *Shih* the plaintiff claimed that Starbucks provided her with a defective cup because it was filled to the top with hot tea and no sleeve was provided. Plaintiff carried the hot drink to a table and was later burned by the hot liquid when she attempted to lean back in her chair, lost her balance, grabbed the table and knocked her hot cup of tea onto herself. The court found that the events leading to the tea spill were too remote from the alleged defects in the cup for plaintiff to prove proximate causation. (*Shih, supra*, 53 Cal.App.5th at 1068-69.)

In *Modisette* the driver of a car was driving while using FaceTime on his Apple iPhone and crashed into Plaintiffs' vehicle. Plaintiffs argued that Apple should have locked its iPhone from allowing FaceTime while driving. The Court disagreed, finding that Apple's failure to disable FaceTime while driving did nothing more than create the condition that made the plaintiffs' injuries possible. The court also found that a reasonable juror would not identify Apple's conduct as being actually responsible for plaintiffs' harm. (*Modisette, supra*, 30 Cal.App.5th at 152-154.)

Assuming that Defendant has met its initial burden, there are triable issues of material fact here. Defendant did not include an undisputed fact showing the alleged defect in the van, however, the first amended complaint alleges that the van's braking system was defective. (FAC p. 5.) The evidence also shows that Plaintiff put the van into park before exiting. Finally, there is a triable issue as to how fast the van was moving when Plaintiff attempted to reenter it to stop it from moving. (Disputed fact 9: Walker dec. ¶17 [van was moving at 10pmh]; Stodola dec. ¶11 [van was moving at 4.7-4.8 mph].) Based upon these facts, a reasonable juror could find that Defendant's conduct (here the defect braking system in the van) was a cause of Plaintiff's injuries.

Both *Shih* and *Modisette* are distinguishable on their facts. In *Shih*, the temperature of the beverage and lack of a sleeve had no connection to Plaintiff's losing her balance, grabbing the table and spilling tea on herself. In *Modisette*, the driver's irresponsible choice to use Facetime while driving was the direct cause of injury. Here, there is a more direct connection between Plaintiff's injury and the van's defective brakes. A reasonable jury could find that the Plaintiff would not have tried to re-enter the moving van had the braking system been working properly. A jury could find that a person trying to re-enter a rolling vehicle may be acting reasonably in order to prevent potential property damage and potential injury to others. The court cannot agree that Defendants have established there is no proximate causation as a matter of law.

The motion for summary judgment is **denied**.

Summary Adjudication: Superseding Act and Misuse of Van

In Defendant's tenth affirmative defense, it alleged that Plaintiff's injury was caused by the acts of other persons or entities not under Defendant's control and that conduct was the superseding cause of Plaintiff's actual damage.

In Defendant's twelfth affirmative defense, it alleges that the van was not being used in a normal, foreseeable and intended manner and such misuse was the cause of the incident.

" 'A defendant moving for summary judgment based upon an affirmative defense, as here, bears an overall burden of persuasion that there is a complete defense to the plaintiff's action ... ' [Citation.] In other words, the defendant must persuade the court there is no triable issue of fact as to that defense. [Citation.] In meeting the burden of persuasion, the defendant 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact' as to the defense. [Citation.]" (*Fazio v. Fairbanks Ranch Country Club* (2015) 233 Cal.App.4th 1053, 1057.) Summary adjudication as to an affirmative defense can only be granted if it completely disposes of that affirmative defense. (Code of Civil Procedure §437c(f)(1).)

"[T]he defense of 'superseding cause,' which absolves a tortfeasor, even though his conduct *was* a substantial contributing factor, when an independent event intervenes in the chain of causation, producing harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible. [Citations.]" (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 573, fn.9.) "Whether an intervening force is a superseding cause or not generally presents a question of fact, but becomes a matter of law where only one reasonable conclusion may be reached." (*Chanda v. Federal Home Loans Corp.* (2013) 215 Cal.App.4th 746, 756.)

"Product misuse, an affirmative defense, is a superseding cause of injury that absolves a tortfeasor of his or her own wrongful conduct only when the misuse was ' "so highly extraordinary as to be unforeseeable." ' [Citations.] 'However, foreseeability is a question for the jury unless undisputed facts leave no room for a reasonable difference of opinion.' [Citation.]" (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1308; see also, CACI no. 1245.) " [P]roduct misuse may serve as a complete defense when the misuse 'was so unforeseeable that it should be deemed the sole or superseding cause.' [Citation.]" (*Perez v. VAS S.p.A.* (2010) 188 Cal.App.4th 658, 685.)

Here, there is no evidence of a third party engaging in a superseding act. The alleged superseding act is the same as the alleged misuse of the van, which is that Plaintiff attempted to re-enter the van after it was moving. Thus, the two affirmative defenses require essentially the same analysis. The question here is whether Plaintiff's actions to re-enter a van when it started rolling backwards down a hill is so highly extraordinary as to be unforeseeable.

Defendant relies on Dorris' declaration, an expert in industrial and systems engineering, that Plaintiff's actions were not reasonably foreseeable. Dorris declares Plaintiff's attempt to re-enter the

van was an extraordinary misuse of the van that was not reasonably foreseeable to Defendant. (Dorris dec. ¶18.)

Plaintiff provides a declaration for McGehee, an expert in industrial and systems engineering, where he explains that “drivers attempting to re-enter a vehicle after it has unexpectedly begun to move has been a persistent and well-known problem for over 25 years.” (McGee dec. ¶10(a).) He also states that in this case, Plaintiff’s action was foreseeable and predicable human behavior. (McGee dec. ¶54.) Thus, there is a triable issue of material fact as to foreseeability based upon the competing expert declarations.

The motion for summary adjudication as to the tenth and twelfth affirmative defenses is **denied**.

Rulings on Evidence

Plaintiff’s requests for judicial notice are granted.

Plaintiff’s objection to Dorris’ declaration paragraph 18 is Overruled.

The Court rules on Defendant’s objections to evidence as follows:

Stodola Declaration:

1. Sustained.
2. Overruled.
3. Overruled.
4. Overruled.

McGehee Declaration:

5. Overruled.
6. Overruled.

Gelder Declaration:

7. Overruled.
8. Overruled.
9. Overruled.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: QUASH DEPOSITION SUBPOENAS**
FILED BY: JOHNSON, GARY
TENTATIVE RULING:

This hearing date should have been vacated by the Court’s Order dated 2/20/26 appointing a Discovery Referee in this matter.

3. 9:00 AM CASE NUMBER: C24-00171
CASE NAME: VELDA CARR VS. IMRAN SYED
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: SYED, APRYL
TENTATIVE RULING:

The Motion by attorney Herbert N. Wiggins/HEARTHSTONE LEGAL GROUP to be Relieved as Counsel for Defendant Apryl Syed rendered moot by the filed Substitution of Attorney filed April 29, 2026.

4. 9:00 AM CASE NUMBER: C24-00586
CASE NAME: GURPREET SINGH VS. JASPAL SINGH
HEARING IN RE: **NOT ON L&M CALENDAR SETTLEMENT MENTOR HEARING WITH ADR. MUST OCCUR IN PERSON IN D32 JURY ROOM DUE TO INTERPRETER REQUIREMENT**
FILED BY:
TENTATIVE RULING:

Parties to appear for settlement mentor meeting. Please report to Dept. 32 at 725 Court Street, Martinez, unless pre-approved by court to appear by Zoom.

5. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS/CONT'D FROM 8/7/26
FILED BY:
TENTATIVE RULING:

Defendant Sunset View Cemetery's Motion for Summary Judgment or Summary Adjudication of Issues is **denied**.

Statement of Facts

Plaintiffs Mildred Powell (Powell) and LaDecie Riley (Riley) bring this action against Defendant Sunset View Cemetery Association (Defendant) arising from the burial of Danielle Renee Riley (the Decedent), who was Powell's daughter and Riley's sister. The parties dispute whether the Decedent was buried in, and remains in, the location specified in the parties' burial contract.

The following facts are drawn from Defendant's Separate Statement of Undisputed Material Facts and Plaintiffs' responses.

Powell and Sunset View entered into a written contract for the Decedent's burial. (Defendant's Separate Statement of Undisputed Material Facts (UMF) 1.) Powell did not ask any questions about the row and grave number identified in the Burial Contract before signing it because the location, Grave 47, Row 47, was explained to her. (UMF 2.) Following the burial, Powell thought the Decedent had been buried in Grave 47, Row 47 because she signed the Burial Contract identifying that plot. (UMF 3.) Defendant asserts that no terms of the Burial Contract were misrepresented to Powell when

she signed it. (UMF 4.) As to Fact Nos. 2 and 4, Plaintiffs respond that while Powell did not ask questions, Plaintiffs do not believe the Decedent was buried in Row 47, Grave 47. (Plfs.' Response to UMF Nos. 2, 4.)

Sunset View offered to open the grave to confirm the Decedent's location. (UMF 5.) Powell signed an authorization allowing the cemetery to do so. (UMF 6, undisputed.) Defendant contends that Powell personally confirmed the Decedent's casket in that process. (UMF 7.) Plaintiffs purport to dispute this fact, but their response states only that Powell did not ask questions about the row and grave number before signing, and Plaintiffs do not believe the Decedent was buried in Row 47, Grave 47. (Plfs.' Response to UMF 7.) Powell's deposition testimony complicates Defendant's characterization of Fact 7. Although Powell testified that she was able to confirm the casket was the Decedent's, she also testified she did not know or recall which grave was opened at the time. (Powell Depo. 71:16-23.)

The Separate Statement next addresses a previously unmentioned location: Row 47, Grave 36. Defendant asserts Powell testified that no one informed her the Decedent had been relocated there (UMF 8). In response, Plaintiffs note that on June 1, 2023, the date of the disinterment, Tanya Nagaraja, the cemetery employee who sold the plot and executed the contract, admitted to Riley, "We made a mistake." (Plfs.' Response to UMF 8.)

Defendant also contends that none of the photographs or videos Powell produced in discovery show an identifying row or grave marker. (UMF 9.) Plaintiffs dispute this by citing the declaration of their expert, Mark L. Peterson, and Exhibit A to Riley's declaration. However, neither source actually describes what any produced photograph or video depicts. (Plfs.' Resp. to UMF 9.)

Defendant also points to an administrative complaint Powell submitted to the Cemetery and Funeral Bureau (UMF 10). On March 29, 2024, the Bureau found 'insufficient evidence to support a violation of the Bureau's laws, rules, or regulations' based on its review of the complaint and records (UMF 11). Plaintiffs object to both facts as hearsay, irrelevant, lacking foundation, assuming facts not in evidence, and eliciting unqualified expert opinion. (Plfs.' Resp. to UMF Nos. 10, 11.) In response, Defendant notes Powell verified the Bureau's finding under penalty of perjury. (UMF 12.)

Defendant argues that because Powell experienced sleeplessness, nightmares, and emotional distress prior to the Decedent's burial, its conduct did not cause her emotional injuries. (UMF Nos. 13, 14.) In response, Plaintiffs maintain that her recurring nightmares are attributable to Sunset View's conduct (Plfs.' Resp. to UMF Nos. 13, 14.)

Defendant argues Powell lacks personal knowledge of fraudulent intent, citing her testimony that she does not know if Nagaraja knowingly wrote the wrong grave number to induce her reliance. (UMF Nos. 15, 16.) Plaintiffs counter with testimony that Nagaraja told Riley the cemetery made a "mistake," prompting supervisor Pennington to tell Nagaraja to stop talking. (Plfs.' Resp. to UMF No. 16.)

Regarding Riley, Defendant shows only that she was not a signatory to the Burial Contract. (UMF 17.) Plaintiffs note, however, that her separate claims sound in negligence, fraud, and UCL section 17200. Defendant also points out that Riley cannot recall being present when Powell was told the original grave had been sold to someone else and cannot identify who said it. (UMF Nos. 18, 19.) Plaintiffs

again dispute this by citing the Nagaraja and Pennington testimony. (Plfs.' Resp. to UMF Nos. 18, 19.)

Plaintiffs' January 10, 2025 complaint alleges six causes of action. Powell alone brings the first two causes of action for breach of contract and breach of the covenant of good faith and fair dealing. Powell and Riley together bring the remaining four for negligence, fraud by concealment, fraud in the execution, and violation of Business and Professions Code section 17200.

II. Legal Standard

Summary judgment or summary adjudication is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (Id. at §437c(o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Ibid.*)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at §437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar, supra*, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at p. 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence--as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (*Aguilar, supra*, at p. 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary

judgment statute: "The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating ('disproving') an essential element of the plaintiff's cause of action." (*Brantly v. Pisaro* (1996) 42 Cal.App.4th 1591, 1598; *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at §437c(p)(2).)

III. Discussion

Defendant seeks summary judgment or, alternatively, summary adjudication of each of Plaintiffs' six causes of action. As set forth below, procedural defects in Defendant's notice of motion and separate statement preclude summary adjudication, leaving only summary judgment before the court. Because Defendant fails to meet its burden as to at least two causes of action, the motion must be denied in its entirety.

A. The motion is procedurally deficient

First, the motion is summarily denied on the procedural ground that Defendant's notice of motion and separate statement are defective. The notice of motion moves for summary judgment, or in the alternative, summary adjudication, as to Plaintiffs' six causes of action, but does not identify any cause of action, claim for damages, or issue of duty as a separate issue for adjudication, as required by Code of Civil Procedure section 437c, subdivision (f)(1), and California Rules of Court, rule 3.1350(b). The separate statement suffers from the same defect. Rather than organizing the facts by cause of action, with separate headings and a discrete set of facts tailored to each, as rule 3.1350(d)(1) requires, the separate statement presents a single, undifferentiated list of facts that spans all six causes of action without distinguishing among them.

A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744 (*Schmidlin*).) Because Defendant never specified which causes of action were subject to adjudication in the alternative, and never organized its separate statement to correspond to any such specification, there is no properly noticed issue for the court to adjudicate.

As explained by the Court of Appeal in *Schmidlin*:

A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must "state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts," "the specific cause of action, affirmative defense, claims for damages, or issues of duty" as to which summary adjudication is sought. (Former

Cal. Rules of Court, rule 342(b); see now Cal. Rules of Court, rule 3.1350(b).) The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers. (See *Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1546, 235 Cal.Rptr. 106 [""If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion ' [Citation.] There is a sound reason for this rule: '... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied'"].)

(*Id.* at 743-4.)

Because Defendant's notice of motion and separate statement fail to adequately identify the issues to be decided, the court may treat the motion for summary adjudication as a motion for summary judgment only. (Cal. Rules of Court, rule 3.1350(d), (h); *Schmidlin, supra*, 157 Cal.App.4th at 744; *Homestead Sav. v. Superior Court* (1986) 179 Cal.App.3d 494, 497-498.) The motion may therefore be denied in its entirety so long as it fails as to any one cause of action, even where Defendant's showing on the remaining causes of action is otherwise sufficient.

Defendant's reply arguments do not address the defect. Plaintiffs' opposition raises the procedural defect as follows: Defendant's Separate Statement fails to comply with rule 3.1350, subdivisions (b) and (d)(1), because "each cause of action was not separately stated." (Opp. 2:9-12.) Defendant's reply characterizes Plaintiffs' objection as a complaint that evidence was not presented "in precisely the manner Plaintiffs prefer," and relying on rule 3.1350(b) and *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 311, 315, for the proposition that a summary adjudication motion may depend on the same evidentiary record as the summary judgment motion, and that a trial court retains discretion to consider evidence not contained in a separate statement.

Rule 3.1350(b) has two sentences. The first, which Defendant quotes, permits a shared evidentiary record. The second, which is omitted, requires that "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement." Sharing evidence is a different question from identifying which causes of action the evidence supports. *San Diego Watercrafts* addressed whether a court can consider evidence not included within an otherwise proper separate statement, not whether the notice of motion or separate statement must identify the issues for adjudication.

Treating the motion as one for summary judgment, the Court finds that Defendant failed to shift the burden on the location of the Decedent's remains. Because Defendant's failure on the breach of contract and negligence claims alone requires denial of summary judgment, the Court need not address the remaining causes of action.

B. Defendant did not shift the burden through affirmative evidence or sufficient discovery responses

Defendant elected to proceed under the second of the two methods described in Aguilar for shifting

the burden on summary judgment, that is, by attempting to show that Plaintiff Powell lacks and cannot reasonably obtain evidence to support her claims, rather than by furnishing affirmative evidence negating the elements of Plaintiffs' causes of action. Defendant's position is that Decedent was buried in Row 47, Grave 47 as specified in the contract, and has remained there ever since. Yet Defendant did not submit a declaration from anyone at Sunset View, such as a cemetery employee or records custodian, attesting from personal knowledge or business records that this is true.

Instead, Defendant relies almost entirely on the absence of supporting detail in Powell's own testimony and discovery responses. Defendant points to Powell's admission that no photographs or videos she produced depict any identifying marker showing a row or grave number (UMF 9), and to her testimony that no one informed her the Decedent had been relocated. (UMF 8.) But an absence of markers in Plaintiff's own photographs establishes only the limits of her photographic evidence, not the limits of the evidentiary record as a whole.

Nor does the record reflect that Defendant sought discovery responses tied to witnesses with actual knowledge of where the Decedent was buried and whether her remains were disturbed. Defendant's separate statement identifies Tanya Nagaraja, the cemetery employee who sold the grave and prepared the contract, and Scott Pennington, the supervisor, as individuals with direct knowledge of events surrounding the burial and the alleged statement regarding a "mistake." (Fact Nos. 8, 16, 18-19.) Defendant did not submit declarations from Nagaraja, Pennington, or any other Sunset View representative with personal knowledge of these events, and did not submit evidence of comprehensive discovery served on Plaintiffs for the purpose of identifying all facts, witnesses, or documents supporting their claims. Defendant's showing is confined to what Powell herself did or did not personally observe, rather than what the broader evidentiary record might show.

Defendant must either present affirmative evidence establishing the facts at issue, or show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims, for example, through comprehensive discovery. Defendant did neither, so it does not meet its burden under Code of Civil Procedure section 437c, subdivision (p)(2).

C. Defendant did not meet its burden on the first cause of action for breach of contract

The pleadings "set the boundaries of the issues to be resolved at summary judgment." (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648.)

The complaint alleges three distinct theories of breach. First, paragraph 16 alleges that Defendant breached the parties' "express written and oral contract" where "burial plot locations exhibited by Defendants and orally agreed but not thereafter placed into the Agreement" reflected "a willful decision by Defendants to remain silent in light of a duty to disclose this material and emotionally damaging information." The incorporated factual background develops this allegation further: Plaintiffs were shown and orally agreed to a gravesite in Row 49, Grave 36 (Compl. ¶ 6B), but Defendant, "without any advisal, discussion or notice," prepared a written agreement identifying a different location, Row 47, Grave 47, and never discussed this "changed critical contract term" with Powell before she signed. (Compl. ¶ 6C.) Defendant's motion does not address this theory. Its evidence, that Powell reviewed, understood, and signed the written contract, does not negate an allegation that the substitution of terms before signing, not any subsequent conduct, amounted to

breach.

Second, the Complaint alleges the Decedent was initially interred in a third location, Row 49, Grave 39, matching neither the location shown to Plaintiffs nor the location in the contract. (Compl. ¶ 6E.) Defendant's argument concludes with the assertion that Plaintiffs' evidence "cannot and have not established that the Decedent was buried in any location other than the contracted-for grave." (Mot. 11:1-5.) This is broad enough to encompass the above theory, but no evidence Defendant cites supports it as applied here. Powell's belief that the Decedent was in Row 47, Grave 47, and her testimony that she confirmed a casket at the May 2023 disinterment, says nothing about where the Decedent was initially interred in January 2023. Powell also testified she did not know or recall which grave was opened at the time of that confirmation. (Powell Depo. 71:12-23.) Defendant's evidence therefore does not establish even that the casket Powell confirmed was in Row 47, Grave 47, let alone where the Decedent was originally buried four months earlier, and does not carry Defendant's burden.

Third, the Complaint alleges that Defendant informed Powell the Decedent's remains had been moved, following disinterment, to a fourth location, Row 47, Grave 36, and that this occurred because the original location had been sold to another party. (Compl. ¶¶ 6I, 6J.) Defendant's motion addresses this theory directly, citing Powell's testimony that "no one informed me" the Decedent had been relocated. (UMF 8.) This testimony defeats the specific allegation that Defendant told Powell her daughter's remains had been moved, since Powell's own testimony contradicts that premise of her own pleading. It does not, however, establish that Plaintiffs lack any evidence that the Decedent's remains were in fact moved by some other means. The record separately reflects that Tanya Nagaraja, the cemetery employee who sold the grave and signed the contract, told Riley "we made a mistake" on the date of the disinterment. (Plfs.' Resp. to UMF 8.) Defendant's showing defeats the allegation that Defendant directly informed Powell of a relocation, but does not establish the absence of any evidence that a relocation occurred.

Because Defendant failed to demonstrate that Powell cannot establish any theory of breach reasonably encompassed within the complaint's allegations, it has not satisfied its initial burden on the first cause of action for breach of contract.

D. Defendant did not meet its burden on the third cause of action for negligence

Defendant attacks the breach element of the negligence cause of action, arguing from the finding of the California Cemetery and Funeral Bureau (CFB) that there was "insufficient evidence to support a violation of the Bureau's laws, rules, or regulations." (Mot. 14:6-9; UMF 11.) Defendant's separate statement asserts that Powell "verified, under penalty of perjury, the authenticity and genuineness" of that finding. Plaintiffs' response to UMF 12 clarifies that Powell admitted only that the letter concluding the CFB's investigation is authentic, not that the conclusions within it are true. Admitting a document is genuine is not admitting that its contents are true. Powell's verification shows only that the letter exists and says what it says, not that the CFB's conclusion is correct or that Sunset View did not breach its duty.

Defendant cites no authority establishing that a finding by CFB is binding, preclusive, or otherwise dispositive of a negligence claim asserted in a civil action. The Court is not persuaded that the CFB's finding of insufficient evidence to support a regulatory violation establishes, as a matter of law, that

no breach of the duty of care occurred.

The Court notes that the record also does not establish what the CFB actually investigated or on what basis it reached its finding. The separate statement offers only Powell's testimony that she submitted a complaint and a single sentence from the Bureau's finding letter. (UMF Nos. 10-11.) Neither Powell's complaint nor the documentation the CFB reviewed is offered, the specific regulations the CFB assessed are never identified, and there is no showing that any such regulation addresses burying a decedent in the wrong location or moving remains without authorization. On this record, the Court cannot determine what the CFB examined or how its conclusion bears on the duty of care at issue here.

Defendant also argues the negligence cause of action fails because "Powell's own testimony forecloses any showing of causation." (Mot. 15:16.) Defendant's causation argument is that Powell's emotional distress predated the burial and cannot be attributed to Sunset View's conduct. Defendant contends Powell experienced sleeplessness, nightmares, and emotional distress before the Decedent's burial, due to the Decedent's death, and that the "primary" cause of her distress is therefore not Defendant's conduct. (UMF Nos. 13, 14.) Defendant relies on Powell's testimony that these symptoms began before any issue about the burial was raised, and that the primary cause of her distress was the death of her daughter. (Mot. 15:8-19.) The Court has reviewed this testimony, and it does not show that Powell experienced no emotional distress or harm as a result of the events at issue in this case. In response to a question about the harm she experienced as a result of Defendant's conduct, Powell separately testified that she felt Defendant had not been truthful with her about these matters, and "it hurts really bad. It hurts." (See Powell Depo. 87:6-18.)

Defendant's causation argument also does not reach the entire cause of action. The negligence cause of action is asserted by both Powell and Riley. Nothing in Defendant's motion addresses Riley's claimed emotional distress, or its cause. Defendant has therefore not met its burden as to Riley's negligence claim, regardless of whether its showing is sufficient as to Powell.

E. Evidentiary matters

Defendant requests judicial notice of the Plaintiffs complaint filed on January 10, 2025, and the CFB written determination following its investigation of Powell's administrative complaint. The Court takes judicial notice of the existence of both documents and of the fact that the CFB determination states that "upon review of the complaint and applicable documentation collected, there is insufficient evidence to support a violation of the Bureau's laws, rules, or regulations." The Court does not take notice of the truth of that statement or other factual matter in either document. (Evid. Code, § 452, subds. (c), (d).)

Defendant has not met its burden under Code of Civil Procedure section 437c, subdivision (p)(2), of showing by admissible evidence that one or more elements of Plaintiffs' causes of action cannot be established, or that there is a complete defense thereto. As such, there is no need to address Defendant's objections to Plaintiffs' evidence submitted in opposition to the motion. (Code Civ. Proc., § 437c, subd. (q) ["In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of

the motion"].)

IV. Conclusion

For the foregoing reasons, the Motion for Summary Judgment, or in the Alternative, Summary Adjudication, is **denied**. The Court will entertain an application to file a renewed motion by Defendant, provided it is not simply a "reformatted, condensed, and cosmetically repackaged" version of this motion. (See *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827.)

6. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 7.

7. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer is **sustained without leave to amend**, as discussed below. The motion to strike is **denied as moot**.

I. Factual Background

The Second Amended Complaint ("SAC") here involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-013-7) was purchased in February of 2014 while the other (APN 264-081-014-5) was purchased in February of 2016. (SAC, ¶¶4.) Plaintiff alleges that the County sold the parcels despite lack of an easement. (SAC, ¶¶5-7.)

Plaintiff alleges that the County has assessed the parcels consistent with them being accessible by the easement over neighboring land. (SAC, ¶12) Nonetheless, a court judgment in April 2024 found plaintiff's properties had been landlocked at the time he purchased them, as well as since that time. (*Ibid.*)

While not described in detail in the SAC, the Court takes judicial notice of the Statement of Decision by the trial judge in that case, the Honorable Terri Mockler, who heard testimony, visited the site, and reviewed numerous documentary exhibits. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. B [Notice of Entry of Order with attached Statement of Decision].) Judge Mockler found in favor of the defendant neighbors (*id.* at 20), making numerous factual and legal findings, including, but not limited to (1) plaintiff's disputes with the neighboring owners pre-dated his purchase in 2016, (2) the City of Orinda did not misrepresent

access, that easement rights were adversely possessed, and (3) the easement had been abandoned. The case was not appealed.

Plaintiff alleges here, in his SAC, that the County should have known there was no access based on its approval of construction projects that encroached upon the easement, and as the owner of plaintiff's parcels at the time. (SAC, ¶13.)

Plaintiff alleges he filed a claim with the Contra Costa County Board of Supervisors on July 16, 2024 under Revenue and Taxation Code sections 3729, 3731, 5096, and 5097, "seeking rescission of the tax sales and a full refund of all amounts paid." (SAC, ¶40.)

The claim seeks damages in the amount of \$548,420, which reflects the price paid for the parcels (approximately \$18k and \$32k), taxes paid on them (approximately \$25k and \$26k), costs of development efforts (\$68k), attorney cost for "City Letter" (approximately \$8k), court case costs for case C19-02408 (approximately \$54k), court case costs for C22-00619 (approximately \$65k), cost of "effort" and punitive damages (approximately \$150k), and interest (approximately \$100k). Notably, nothing in the claim mentions "rescission." (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. C [Government Code Claim stamped "received" July 16, 2024].)

On August 13, 2024, the claim was rejected in full, partly (but not entirely) on the basis that it was untimely. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. D [correspondence regarding claim].) Plaintiff requested reconsideration and submitted additional information. (*Ibid.*) The County again rejected his claim, considering it as an "amended claim." (*Ibid.*) Because the County continued to respond to plaintiff by referring to the Government Claims Act, plaintiff explained in correspondence that his claim was not subject to the Act as a Revenue and Taxation Code claim and asked that he be refunded the money he paid for the properties, among other items. (*Ibid.*)

Later, on January 14, 2025, the County denied plaintiff's application for leave to present a late claim ("BOARD ORDER: [...] This application to File Late Claim is denied (Section 911.6).") Government Code section 911.6, which is within the Government Claims Act, requires the board to "grant or deny [an application to present a late claim] within 45 days after it is presented." (*Ibid.*)

Plaintiff then filed a petition with the court for leave to present a late claim pursuant to the Government Claims Act. The case was assigned to Judge Edward Weil.

Plaintiff also filed this action on January 29, 2025. The matter was assigned for all purposes to Judge Danielle Douglas.

In August 2025, in ruling on plaintiff's petition (pursuant to the Government Code Claims Act), Judge Weil ruled the petition was "moot" in part because the claims brought pursuant to the Revenue and Taxation Code were exempt from the claim filing requirements in the Government Claims Act. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. A [court ruling on late claim petition].)

Since Judge Weil's ruling on the petition, two demurrers have been sustained in the case, with leave to amend. Plaintiff filed the current SAC on March 25, 2026. Plaintiff's SAC sets forth five causes of action as follows: (1) Refund and Rescission; (2) Tax Refund and Cancellation; (3) Traditional Mandamus; (4) Declaratory Relief; and (5) Inverse Condemnation.

After meeting and conferring with plaintiff, as required by Code of Civil Procedure, section

430.41, the County filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), which plaintiff opposes in a memorandum of points and authorities that, against the California Rules of Court, exceeds 15 pages. (Cal Rules of Court, Rule 3.1113 (d).) The Court has nonetheless considered the arguments therein, as well as in the County's reply.

II. Evidentiary Matters

The County's request for judicial notice in support of the demurrer is **granted**.

Plaintiff's request for judicial notice of the subdivision map, as well as tax assessment records, is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. First Cause of Action for Refund and Rescission

Plaintiff seeks to rescind the tax sales based on his receipt of parcels that did not include the easement rights he claims they should have included. The easement rights were extinguished, as held in the judgment, years before the tax sales.

Property sold at a tax sale is offered and sold "as is." (Rev. & Tax. Code, § 3692.3 (a).) The doctrine of "caveat emptor" applies. (*Craland, Inc. v. Cal.* (1989) 214 Cal.App.3d 1400, 1406.) The plaintiff's only remedies for having purchased properties he claims were defective in this manner are the statutory remedies set forth in the California Revenue and Taxation Code. (*Ribeiro v. County of El Dorado* (2011) 195 Cal.App.4th 354, 361.) The County, in preparing, conducting, and executing a tax sale, is not liable for "known or unknown conditions," including, but not limited to, errors in the assessor's records pertaining to improvement of the property. (Rev. & Tax. Code, § 3692.3 (b)(1).)

Under the Revenue and Taxation Code, a deed to a property sold at a tax sale may be rescinded under certain conditions. Revenue and Taxation Code section 3725, subdivision (a) provides as follows:

A proceeding based on alleged invalidity or irregularity of any [tax sale] can only be commenced in a court if both of the following are satisfied:

(1) The person commencing the proceeding has first petitioned the board of supervisors pursuant to Section 3731 within one year of the date of the execution of the tax collector's deed.

(2) The proceeding is commenced **within one year of the date the board of supervisors determines that a tax deed sold** under this part should not be rescinded pursuant to Section 3731.

(Rev. & Tax. Code, § 3725(a), emphasis added.)

Section 3725 further excludes tax sale challenges from the Code of Civil Procedure sections

addressing statutes of limitations. (*Id.*, at subd. (b).)

Plaintiff here did not petition the County within a year after the tax deeds were executed and instead waited until July 2024, following his defeat in litigation against neighboring property owners. July 2024 is approximately ten years after purchasing one parcel and eight years after purchasing the other. Plaintiff's facts do not overcome this delay.

Plaintiff argues, as he has previously, that the triggering event for any statute of limitations was the judgment in his case against the neighboring property owners. The County has cited in previous demurrers, and again cites here, *JPMorgan Chase Bank, N.A. v. City and County of San Francisco* (2009) 174 Cal.App.4th 1201. (Memorandum of Points and Authorities in Support of Demurrer, 7:3-4.) That case expresses doubt that "state courts may apply the judicially created doctrine of equitable tolling to alter state tax refund procedures established by the Legislature pursuant to its constitutional grant of power." (*JPMorgan Chase Bank, N.A.*, *supra*, 174 Cal.App.4th at 1213.)

While plaintiff argues Revenue and Taxation Code, section 3725 is different from the statute at issue in *JPMorgan Chase Bank* (which analyzed section 5097), the discussion in that case favors the County's position here. That is because the language of the statute specifically delineates the remedies available, but only under certain procedural guidelines, *i.e.*, the petitioning of the County within one year of deed execution. (See Memorandum of Points and Authorities in Support of Demurrer, 7:18-28; Rev. & Tax. Code, § 3725 (a)(1).) Section 3725 is clear and leaves no room for application of the discovery doctrine, or equitable tolling. Plaintiff has had several opportunities to provide the Court with authority that would support application of the discovery rule here. He has not done so.

Even assuming that the discovery rule applies to Revenue and Taxation Code, section 3725 (which has not been established and would appear to contradict the underlying reasons for these sales being "as is"), plaintiff had notice the parcels were landlocked years before he petitioned the County, as evidenced by the judgment in his case against his neighboring property owners.

As reflected in Judge Mockler's statement of decision, attached to the original Complaint as Exhibit 1 to Exhibit A, plaintiff made an inspection in March 2014 at which time he noted that the paved road ended at the property of his neighbor. His neighbor insisted that his property encroached upon the easement of record. This constituted notice to plaintiff sufficient to set the clock ticking on his time to petition the County. While the reasonableness of a delay can be a question of fact (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797), it can also be determined as a matter of law in cases where the undisputed facts show the requisite notice. (*65 Butterfield v. Chi. Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054-1055 ["it is the discovery of facts, not their legal significance, that starts the statute"].)

Further, to the extent that Judge Weil ruled plaintiff did not need leave to file a late Government Code claim related to his claims against the County, and that plaintiff's petition for such leave was moot, the ruling does not establish timeliness of the claims herein.

The demurrer to this cause of action is sustained on the ground that any challenge to the tax sales is untimely.

B. Second Cause of Action for Tax Refund and Cancellation — Post-Adjudication Assessments

Plaintiff contends the second cause of action is pleaded “in the alternative to Cause 1,” but in fact, it appears to depend on the outcome of the first count. (See Memorandum of Points and Authorities in Support of Opposition, 13:19-21 [plaintiff argues that “If the tax deed is voided or the sale rescinded, the County's basis for all post-sale tax assessments collapses.”].)

Plaintiff seeks to be refunded for his taxes since the April 22, 2024 judgment as provided in sections 5096 and 5097 of the Revenue and Taxation Code. (SAC, ¶¶53-54.) As noted in the SAC, this cause of action is governed by a “four-year lookback period.” (SAC, ¶153.)

The County demurs, arguing plaintiff is not entitled to recover any assessments because he did not exhaust administrative remedies for assessment reduction. Whether or not plaintiff pleads the second cause of action in the alternative, the County's position is correct. As stated in *LA Live Properties, LLC v. County of Los Angeles* (2021) 61 Cal.App.5th 363, 377, in the property tax context, exhaustion is required. This means a taxpayer ordinarily may not file or pursue a court action for a tax refund without first applying to the local board of equalization for assessment reduction. (*LA Live Properties, LLC, supra*, 61 Cal.App.5th at 377.) While the demurrer cites this case, plaintiff fails to respond to it. The SAC does not allege plaintiff filed a refund claim or application for reduction in assessment, prerequisites to any refund pursuant to Revenue & Taxation Code, § 5097.

Plaintiff has not alleged that he took such steps, or what the County's response was if he did. On the contrary, he argues that he could allege exhaustion was excused because “the assessment is void rather than merely excessive.” This would not change the outcome here.

Accordingly, the cause of action fails to include facts sufficient to state a cause of action and leave to amend is not warranted. The demurrer to this cause of action is sustained.

C. Third Cause of Action for Mandamus

Plaintiff pleads two bases for a writ of mandamus: that the County is required to (1) process his Government Code Claim pursuant to the Revenue and Taxation Code, and (2) accurately assess the parcels pursuant to Revenue and Taxation Code section 51 by “treating the April 22, 2024 judicial determination as controlling.”

A writ must “compel the performance of an act which the law specially enjoins as a duty resulting from an office, trust, or station.” (Code Civ. Proc., § 1085 (a).) Code of Civil Procedure section 1086 states the controlling statutory requirements for standing for mandate: “The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law. It must be issued upon the verified petition of the party beneficially interested.” In other words, a court may only issue a writ of mandate if the petitioner establishes (1) a clear, present ministerial duty on the part of the respondent; (2) a correlative clear, present and beneficial right in the petitioner to the performance of that duty; and (3) no plain, speedy, and adequate alternative remedy exists. (*Rutgard v. City of Los Angeles* (2020) 52 Cal.App.5th 815, 824, citations omitted.)

The County demurs, correctly arguing that there is “no ministerial duty to rescind the sale.” The statute providing such remedy is only discretionary. (Rev. & Tax. Code, § 3731 [“the sale may be rescinded [...]”].) This point overlooks what plaintiff's stated basis for mandamus, however.

Plaintiff first requests the County be compelled to process his claim according to the Revenue and Taxation Code. Any such processing would ultimately require plaintiff to have filed a claim within one year of execution of the deeds. Accordingly, while the County may have incorrectly referenced the Government Claims Act in all denial / rejection correspondence, plaintiff still has no “clear, present

and beneficial right” to the County processing his claim pursuant to another statutory scheme. Plaintiff cannot show that under the Revenue and Taxation Code, the process would lead to a different result. This is because even assuming some basis for applying the discovery rule to plaintiff’s cause of action, plaintiff’s triggering date for any accrual is March 2014, the date he inspected the property and found it to be landlocked, not the April 2024 decision by Judge Mockler.

As to plaintiff’s request that the County “accurately assess” his parcels, plaintiff does not allege, and effectively concedes, that he has not exhausted his administrative remedies, as discussed above with respect to the second cause of action. Until he seeks a reduction in assessment value through the proper procedure, the County has no duty (mandatory or discretionary) to do so.

Plaintiff cannot show the required elements for mandamus. The demurrer to this cause of action is sustained.

D. Fourth Cause of Action for Declaratory Relief

An action for declaratory relief is not an appropriate method for judicial review of administrative decisions. (*Hill v. Manhattan Beach* (1971) 6 Cal.3d 279, 287, citing *Hostetter v. Alderson* (1952) 38 Cal.2d 499, 500.) Still, a complaint for declaratory relief may be construed as a petition for a writ of mandate to determine whether a defendant public entity prejudicially abused its discretion. (*Ibid.*) The Court has already discussed such cause of action (for writ relief) above. This cause of action, to the extent it addresses events already in the past, is therefore superfluous and fails on similar grounds.

Plaintiff contends that the cause of action also relates to the County’s future assessments based on an incorrect property value. There are exhaustion requirements plaintiff fails to satisfy for such a theory, which are mentioned above with respect to the second and third causes of action.

The demurrer to this cause of action is sustained.

E. Fifth Cause of Action for Inverse Condemnation

Inverse condemnation is one of two basic procedural devices (the other being eminent domain) for insuring that the constitutional proscription that “[private] property shall not be taken or damaged for public use without just compensation having first been made to . . . the owner . . .” is not violated. (*Klopping v. Whittier* (1972) 8 Cal.3d 39, 43, quoting Cal. Const., art. I, § 14.)

Here, plaintiff alleges “three independent grounds” which include the County’s conduct allowing the easement infringement when it owned the parcels, the conveyance of the deeds, and the assessing and collecting taxes since the Judgment in favor of the neighboring property owners. (SAC, ¶166.) The County demurs, arguing first that the SAC does not identify any property interest the County acquired, appropriated, or damaged for public use. The County also argues plaintiff lacks standing to sue for inverse condemnation related to the earliest conduct since plaintiff did not own the property at the time, that the County never even owned the property (just gained the power to sell it) under Rev. & Tax. Code, § 3691, and that the allegations fail under the sham pleading rule (since they are inconsistent with previous versions of the complaint).

Notably, plaintiff’s opposition to the demurrer emphasizes inaccurate future assessments based on the lack of easement. But based on his failure to file any refund claim or application for reduction in assessment, as noted above, administrative exhaustion requirements bar this theory even if the conduct could otherwise be inverse condemnation (which is doubtful in light of the

detailed statutory scheme providing appropriate tax remedies).

The demurrer to this cause of action is sustained.

V. Leave to Amend

The demurrer to the SAC is **sustained** in its entirety, without leave to amend. Though plaintiff asserts he has several factual allegations that would address any issues, the Court does not find these listed facts to be sufficient. Plaintiff has not met his burden in this regard. (See, e.g., *Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 [“the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading”].) Plaintiff purchased the parcels in 2014 and 2016. Plaintiff knew very soon after this that the easement was being obstructed and had been for some time. Obtaining judgment in a case to settle the issue in court was not the triggering event.

8. 9:00 AM CASE NUMBER: C25-01177

CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI

***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: VALIASHRAFI, NEDA

TENTATIVE RULING:

Before the Court is the Plaintiff’s Motion, filed April 17, 2026, for Leave to File a Second Amended Complaint. Hearing was set for September 11, 2026. Defendants’ Opposition pleadings were due August 28, 2026, 9 (nine) court days in advance of hearing. (CCP 1005) Defendants filed an Opposition on September 4, 2026, a mere four court days in advance of the hearing. This would have been untimely even if it were a Reply Memorandum.

Defendants offer no explanation for their tardy submission. Their late filing has effectively precluded Plaintiffs from having a meaningful amount of time to respond.

The Court has broad discretion to accept or reject papers filed after the applicable deadline absent a prior order finding good cause for the late submission. (See Cal. Rules of Court, Rule 3.1300(d); see also *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252,262-263; *Samaniego v. Empire Today LLC* (2012) 205 Cal. App. 4th 1138,1146; see also *Shadle v. City of Corona* (1979) 96 Cal.App.3d 173, 178–179 [“The requirement that opposing papers be filed a reasonable time in advance of the hearing helps to ensure that the court and the parties will be familiar with the facts and the issues so that meaningful argument can take place and an informed decision rendered at the earliest convenient time.”].)

Here no prior order finding good cause for the late submission has been made. The Plaintiff’s motion is **granted**. The Plaintiff shall file the proposed Second Amended Complaint within 15 days of the hearing date of September 11, 2026.

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. DOES 1 TO 20
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Before the Court is the Defendant's Demurrer, filed April 20, 2026, to the Plaintiffs' First Amended Complaint. Hearing was set for September 11, 2026. Plaintiffs' Opposition pleadings were due August 28, 2026, due 9 (nine) court days in advance of hearing. (CCP 1005) Defendants filed their Opposition on September 1, 2026, seven court days in advance of the hearing.

Plaintiffs offer no explanation for their tardy submission. Defendants filed a timely Reply Memorandum objecting to the tardy submission, citing *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262 and Cal. Rules of Court 3.1300(d). Reply, filed September 3, 2026, at 2. Defendants note that this is the second time the Plaintiffs have missed a deadline to file an opposition to a demurrer.

The Court has broad discretion to accept or reject papers filed after the applicable deadline absent a prior order finding good cause for the late submission. (See Cal. Rules of Court, Rule 3.1300(d); see also *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262-263; *Samaniego v. Empire Today LLC* (2012) 205 Cal. App. 4th 1138,1146; see also *Shadle v. City of Corona* (1979) 96 Cal.App.3d 173, 178-179 ["The requirement that opposing papers be filed a reasonable time in advance of the hearing helps to ensure that the court and the parties will be familiar with the facts and the issues so that meaningful argument can take place and an informed decision rendered at the earliest convenient time."].)

Here no prior order finding good cause for the late submission has been made. Plaintiffs made no attempt to explain their tardiness in their papers. The court will not accept repeated disregard of the court rules.

The demurer is **sustained**, with leave to amend. The Plaintiffs shall file their amended Complaint within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C25-01680
CASE NAME: ERROL USHER VS. ERIC BAEBLER
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ENVENT CORPORATION
TENTATIVE RULING:

The Court continues the hearing on its own motion to October 2, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02069
CASE NAME: MATEO TZI TZUL VS. RAYMOND CAMILLUS CLAVIN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ANGELA F. STOREY, ESQ.(ADVANCED FROM 10/30/2026 - SEE M/O OF 7/13/2026)**
FILED BY: TZI TZUL, MATEO
TENTATIVE RULING:

The unopposed motion of **Angela Storey, SBN 217942**, to be relieved as counsel for **Plaintiff Mateo Tzi Tzul** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. § 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff Mateo Tzi Tzul's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and file the Proposed Order lodged June 9, 2026, Granting Attorney **Angela Storey's** Motion to be Relieved as Counsel (Judicial Council Form MC-053), and listing the appropriate next dates scheduled in the case.

The next date in this case is a Case Management Conference set for December 1, 2026, at 8:30 a.m. in Dept. 32.

The withdrawal is effective upon attorney **Angela Storey's** filing proof of service of signed order on **Plaintiff Mateo Tzi Tzul** and all parties.

12. 9:00 AM CASE NUMBER: C25-02517
CASE NAME: DANVILLE LIVERY & MERCANTILE ASSOCIATES, VS. ASHLEE MORTON
***HEARING ON MOTION IN RE: SET ASIDE AND VACATE DEFAULT**
FILED BY: MORTON , ASHLEE
TENTATIVE RULING:

The parties have stipulated to a continuance of the hearing. The hearing shall be continued to January 22, 2027, at 9:00 a.m. in Dept. 40, Hon. Christopher Bowen.

Parties to take notice that effective January 4, 2027, this case shall be assigned for all purposes to Hon. Christopher Bowen.

13. 9:00 AM CASE NUMBER: C25-03405
CASE NAME: PATRICIA WELLER VS. THEODORE SABERI
HEARING ON DEMURRER TO: TO: 1ST AMENDED COMPLAINT
FILED BY: RIZVI, DOLLY
TENTATIVE RULING:

Defendant Dolly Rizvi's Demurrer to the First Amended Complaint (FAC) is **sustained with leave to amend**. Defendant shall prepare the order pursuant to California Rules of Court, rule 3.1312 and serve and file notice of entry of order. Plaintiff shall have 30 days from the date of service of the notice of entry of order in which to file and serve a second amended complaint.

Background

This case arises out of an alleged physical assault on Plaintiff Patricia Weller while she was a resident at Walnut Creek Willows, a residential care facility for the elderly (RCFE) located at 2015 Diablo Boulevard in Walnut Creek. The facility was owned and operated by Razel and Ruztin, LLC. According to the FAC, Defendant Dolly Rizvi served as the administrator of Walnut Creek Willows in 2018 and is identified in California Department of Social Services (DSS) records as administrator during an annual inspection on June 21, 2023. Defendant Marisol Goco is alleged to have been an administrator charged with overseeing operations and ensuring regulatory compliance, and Defendant Theodore E. Saberi was a co-resident at the facility.

Plaintiff alleges that in 2018, Rizvi authorized Saberi's admission to Walnut Creek Willows even though she knew or should have known that Saberi was ineligible for residency. Specifically, the facility's license restricted admissions to individuals aged 60 and older (whereas Saberi was born in September 1964), and barred individuals with conditions such as paranoid schizophrenia, from which Saberi allegedly suffered. Plaintiff alleges that by admitting Saberi in violation of the facility's license and acuity limits, Rizvi exposed residents such as Plaintiff to an unreasonable risk of harm.

The FAC further alleges that on June 21, 2023, DSS conducted an annual inspection and directed the facility to provide proof of required liability insurance pursuant to Health & Safety Code section 1569.605 by June 28, 2023. The facility failed to do so, and Plaintiff claims it operated without liability insurance from June 28, 2023 through November 15, 2023. Plaintiff alleges that Rizvi and Goco owed fiduciary duties to residents arising from their regulatory responsibilities to ensure compliance with section 1569.605, and that both administrators breached those duties by concealing the lack of insurance from DSS and Plaintiff. Plaintiff alleges that had she known the facility was uninsured, she would have terminated or declined to renew her residence agreement and vacated the facility. Additionally, Plaintiff alleges that Goco committed financial elder abuse by collecting monthly residential fees from July 1, 2023, through November 15, 2023, while knowing the facility was operating out of compliance with statutory insurance mandates.

On November 15, 2023, Saberi allegedly attacked and beat Plaintiff at the facility, causing severe physical and emotional injuries and terminating her residency. Based on these events, the FAC asserts five causes of action against Defendants Theodore Saberi, Dolly Rizvi, and Marisol Goco: (1) intentional tort (battery/assault) against Saberi; (2) breach of fiduciary duty against Rizvi for concealing the lack of liability insurance; (3) negligence against Rizvi for the 2018 admission of Saberi;

(4) breach of fiduciary duty against Goco for concealing the lack of liability insurance; and (5) financial elder abuse against Goco for wrongfully taking residential fees while operating without insurance. Plaintiff seeks compensatory damages for medical expenses and pain and suffering, restitution of residential fees paid from July to November 2023, punitive damages, and attorney fees.

Defendant Dolly Rizvi now demurs to the second cause of action for breach of fiduciary duty and the third cause of action for negligence arguing that neither states facts sufficient to constitute a cause of action.

Demurrer Standard

A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc. § 425.10, subd. (a)(1).) This fact-pleading requirement obligates the plaintiff to allege ultimate facts that "as a whole apprise[] the adversary of the factual basis of the claim. [Citations.]" [Citations.]" (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415.)

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading, which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A complaint must be liberally construed on demurrer. (Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal. App. 4th 594, 601.) "A demurrer tests only the sufficiency of the allegations. It does not test their truth, the plaintiff[s] ability to prove them or the possible difficulty in making such proof." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 840.)

"[I]t is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1358.) "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Preliminary Matters and Evidentiary Submissions on Demurrer

In support of her demurrer, Defendant Rizvi submits a Request for Judicial Notice spanning ten multi-part exhibits, accompanied by declarations from defense counsel Frank S. Moore, facility owner Beth Cortez, and Defendant Rizvi. Defendant asks the Court under Evidence Code section 452, subdivisions (c), (d), and (h) to take judicial notice of: (1) pleadings, complaints, and orders from separate state court actions (*Weller v. Razel & Ruztin, LLC*, Case No. C23-03310; *Weller v. California Health and Human Services Agency*, Case No. C25-00727); (2) Chapter 11 bankruptcy filings and reorganization plan documents from the United States Bankruptcy Court (In re: Razel & Ruztin, LLC, Case No. 24-41003); (3) safe-harbor notices of intent to seek sanctions under Code of Civil Procedure section 128.7; (4) declarations from Rizvi and Cortez attesting to employment start and termination dates; and (5) numerous Facility Evaluation Reports and Complaint Investigation Reports from 2021 through 2025 issued by the California Department of Social Services (DSS), Community Care Licensing Division.

Rather than offering these materials merely to establish their existence or filing dates, Defendant relies on their evidentiary contents to contradict the complaint on its face and disprove Plaintiff's

factual allegations. Defendant uses the Cortez and Rizvi declarations to assert as an indisputable fact that Rizvi stopped working at the facility on December 7, 2020, and was not employed at the time of the 2023 assault or insurance lapse. Defendant analyzes DSS reports to argue that the administrative header field listing Rizvi as "Administrator" was a stale "static database artifact." (See Def.'s Demurrer at p. 7:3–5.) Defendant urges the Court to credit the DSS investigator's hearsay recitals, stating that prior administrator Cecily Palma was terminated the day before the June 21, 2023 inspection, to make an affirmative factual finding that Rizvi was not the acting administrator and that the facility was without an administrator on that date.

Submission of evidence in opposing a demurrer is improper: it is a fundamental principle that a demurrer "tests the pleadings alone and not the evidence or other extrinsic matters." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Evidence such as declarations cannot properly be considered on a demurrer. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; *Hibernia Savings & Loan Soc. v. Thornton* (1897) 117 Cal. 482, 482.) While a court may take judicial notice of the existence of court records and state agency reports under Evidence Code section 452, subdivisions (c) and (d), it is prohibited from taking judicial notice of the truth of hearsay statements or disputed factual assertions in those documents.

The Court grants judicial notice of Exhibits A, B, C, D, E, and F to establish the existence, filing, and recordation of the respective court records and orders in this action, Contra Costa County Superior Court Case Nos. C23-03310 and C25-00727, and U.S. Bankruptcy Court Case No. 24-41003. The Court does not take judicial notice of the truth of any hearsay statements, legal arguments, or disputed factual allegations contained within those documents.

The Court denies judicial notice of Exhibits G and H. an unfiled safe-harbor notice of intent to seek sanctions and contested witness declarations concerning dates of employment are not indisputable facts capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy under Evidence Code section 452(h). Extrinsic declarations may not be considered on demurrer to contradict the complaint.

The Court grants judicial notice of Exhibit J pursuant to Evidence Code section 452, subdivision (c), only as to the official acts of the California Department of Social Services, Community Care Licensing Division, in issuing the regulatory Facility Evaluation Reports and Complaint Investigation Reports on the dates indicated. The Court declines to take judicial notice of the truth of the matters stated in the documents, including regarding who was actually employed or serving as facility administrator during the periods at issue.

Sham Pleading Argument

Building upon these evidentiary submissions, Defendant argues the FAC is a "sham pleading" because Plaintiff narrowed the dates of Rizvi's alleged administrator status after being served with Defendant's draft Code of Civil Procedure section 128.7 safe-harbor motion and accompanying declarations from Rizvi and facility owner Elizabeth Cortez (submitted as Exhibit H to Defendant's RJN), which attest that Rizvi ceased working at the facility in December 2020. The sham pleading doctrine applies where an amended complaint omits or contradicts harmful factual admissions made in a prior pleading without adequate explanation. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.) The doctrine

does not permit a defendant to submit outside witness declarations, unfiled section 128.7 safe-harbor notices, or the hearsay narratives and inspector notes within state agency reports to disprove a plaintiff's allegations of fact and label the pleading a "sham." Whether the DSS database header was an outdated clerical artifact or whether Rizvi ceased employment in 2020 are contested issues of fact that cannot be resolved on demurrer.

Defendant's request to disregard the FAC's allegations under the sham pleading doctrine is denied.

Sufficiency of the Second Cause of Action for Breach of Fiduciary Duty

The elements for breach of fiduciary duty are: (1) the existence of a fiduciary relationship; (2) breach; and (3) damages proximately caused by the breach. (See *LaMonte v. Sanwa Bank Cal.* (1996) 45 Cal.App.4th 509, 517.)

In the second cause of action, Plaintiff alleges that she was a resident of Walnut Creek Willows and Rizvi was its administrator, citing Department of Social Services (DSS) records reflecting Rizvi's administrator status during an annual inspection on June 21, 2023. Plaintiff asserts that Rizvi was responsible for managing facility operations and ensuring compliance Health and Safety Code section 1569.605 which mandates that residential care facilities maintain commercial liability insurance. Plaintiff asserts that this statutory compliance obligation created a relationship of trust and confidence between Rizvi and Weller, thereby transforming Rizvi into a fiduciary regarding the facility's duty to maintain insurance coverage.

Plaintiff alleges that following the June 21, 2023 inspection, DSS ordered the facility to submit a certificate of liability insurance by June 28, 2023, but it failed to do so and remained completely uninsured through November 15, 2023. Plaintiff claims Rizvi breached her fiduciary duty by failing to report the absence of liability insurance to DSS and by concealing the lapse from Plaintiff herself. Plaintiff alleges that had Rizvi disclosed the lack of insurance, she would have terminated her agreement and moved out before November 15, 2023, thereby avoiding the altercation with co-resident Saberi and her alleged injuries.

Defendant argues that whether a fiduciary duty exists in the first instance is a question of law (*David Welch Co. v. Erskine & Tulley* (1988) 203 Cal.App.3d 884, 890), and that breach of fiduciary duty is a tort that may be committed only by a limited class of persons. (*1-800-Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 592.) While an RCFE licensee owes an ordinary duty of due care to its residents arising from a special relationship (*Klein v. Bia Hotel Corp.* (1996) 41 Cal.App.4th 1133, 1140), that case did not address whether a fiduciary duty exists, and Defendant cites no authority establishing that an administrator cannot, as a matter of law, owe a fiduciary duty to a resident. Nonetheless, neither party cites authority affirmatively establishing a fiduciary relationship between an RCFE administrator and a resident. Furthermore, it does not appear that administrative regulations under Title 22 or statutory compliance mandates under Health and Safety Code section 1569.605 can create such a duty.

Even so, California law recognizes that a fiduciary relationship may arise in fact depending on the specific circumstances of the parties' dealings. A fiduciary relationship is "any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost

good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent ... " (*Wolf v. Sup. Ct.* (2003) 107 Cal.App.4th 25, 29.) "The essence of a fiduciary or confidential relationship is that the parties do not deal on equal terms, because the person in whom trust and confidence is reposed and who accepts that trust and confidence is in a superior position to exert unique influence over the dependent party." (*Barbara A. v. John G.* (1983) 145 Cal.App.3d 369, 383.) "A confidential relation may exist although there is no fiduciary relation ... " (*Vai v. Bank of America* (1961) 56 Cal.2d 329, 337-338.) Whether a confidential relationship generates a fiduciary duty is a question of fact turning on: "1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself." (*Richelle L. v. Roman Catholic Archbishop* (2003) 106 Cal.App.4th 257, 272.)

Although the Court is skeptical that regulatory compliance obligations can give rise to a fiduciary duty regarding commercial insurance, because this is the first demurrer addressed to this cause of action, Plaintiff is granted leave to amend.

Sufficiency of the Third Cause of Action for Negligence

Defendant Rizvi demurs to the third cause of action on the ground that she owed no legal duty to protect Plaintiff from the criminal acts of a third party, and that the 2018 intake of Saberi cannot support a negligence claim for an assault occurring five years later. Plaintiff contends that Rizvi owed an actionable duty of care by virtue of facility licensing restrictions and her administrative role, but Notably, in opposing the demurrer, Plaintiff does not cite any authority that an RCFE administrator or supervisory employee personally owes a common law duty to protect facility residents from the criminal acts of a co-resident.

"Generally speaking, all persons have a duty to take reasonable care in their activities to avoid causing injury, though particular policy considerations may weigh in favor of limiting that duty in certain circumstances." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209.) Determining whether a defendant owes a legal duty to protect a plaintiff from injuries caused by a third party is governed by a two-step inquiry. (*Ibid.*) First, the court must determine whether there exists a special relationship between the parties, either between the defendant and the third party or between the defendant and the victim, or some other set of circumstances giving rise to an affirmative duty to protect. (*Ibid.*) Second, if a special relationship exists, the court must consult the factors described in *Rowland v. Christian* (1968) 69 Cal.2d 108 to determine whether relevant policy considerations counsel limiting that duty. (*Ibid.*)

"A special relationship between the defendant and the victim is one that 'gives the victim a right to expect' protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that 'entails an ability to control [the third party's] conduct.'" (*Brown, supra*, 11 Cal.5th at p. 216.) "The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury." (*Ibid.*) Where an affirmative duty to protect is recognized, it typically rests on specific factual allegations showing active care, custody, or direct

supervision, such as promises of continuous monitoring, contemporaneous reliance, and an immediate ability to control the environment or the individuals involved. (See, e.g., *Hernandez v. KWPH Enterprises* (2004) 116 Cal.App.4th 170, 179.)

Even where a special relationship might exist, the *Rowland* factors must be considered: "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (Rowland, supra, 69 Cal.2d at p. 113.) When the connection between the conduct and the injury is extraordinarily attenuated, or the risk of third-party violence is unforeseeable, policy considerations counsel against recognizing an affirmative duty. (*Brown, supra*, 11 Cal.5th at p. 219.)

Here, Plaintiff alleges only that: (1) in 2018, Rizvi was the administrator and Saberi was admitted; (2) Rizvi knew or should have known Saberi was under age 60 and had paranoid schizophrenia, which ran contrary to the facility's license; and (3) Rizvi's admission of Saberi in 2018 was a substantial factor in Saberi assaulting Plaintiff in November 2023.

These sparse allegations are insufficient to establish a legal duty. First, Plaintiff pleads no facts showing that Rizvi personally had a special relationship with Weller giving Weller a right to expect personal protection from her, or that Rizvi personally possessed the ongoing ability to control Saberi. While a residential care facility as an institution may enter into special relationships with its residents, Plaintiff does not allege that Rizvi entered into an independent, individual caretaker relationship with Weller. The complaint also fails to plead facts establishing that Saberi presented a foreseeable danger of physical violence. Plaintiff merely alleges Saberi's age and a medical diagnosis of paranoid schizophrenia. A mental health condition and an administrative licensing age restriction do not, without more, establish a foreseeable propensity for violent battery. Third, under the *Rowland* analysis, the connection between Rizvi's conduct and Plaintiff's injury is extraordinarily remote. Plaintiff seeks to hold an individual former administrator personally liable for an assault committed in late 2023 based solely on an alleged admission decision made five years earlier in 2018. The complaint alleges no facts showing that Rizvi observed violent outbursts, managed Saberi's care plan, had any ongoing supervisory presence, or was even employed at the facility when the 2023 assault occurred.

Accordingly, the demurrer to the third cause of action is sustained with leave to amend for Plaintiff to allege facts establishing that Defendant owed a legal duty of care to Plaintiff, and that her conduct was a proximate cause of Plaintiff's alleged injuries. While the Court does not expect excruciating evidentiary detail at this pre-discovery stage, Plaintiff must nonetheless allege sufficient ultimate facts to state a viable claim against Rizvi individually.

Disposition

Based on the foregoing, Defendant's Demurrer to the FAC is sustained with leave to amend as to the second and third causes of action. Defendant shall prepare the order pursuant to California Rules of Court, rule 3.1312, and serve and file notice of entry of order. Plaintiff shall have 30 days from the date of service of the notice of entry of order in which to file and serve a second amended complaint.

The parties are expected to strictly comply with their meet-and-confer obligations under the Code of Civil Procedure before any further demurrer is filed. Counsel should also discuss whether targeted informal discovery or document production would satisfy Plaintiff regarding Defendant Rizvi's actual dates of employment and the scope of her personal involvement, if any, in the matters alleged.

14. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: WALTERS, JESSE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

15. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
HEARING IN RE: NOTICE OF SPECIAL APPEARANCE BY CHERI DOVE TO JOIN PETITION TO COMPEL ARBITRATION
FILED BY: CASWELL BAY, INC. DBA HILLENDALE HOME CARE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

16. 9:00 AM CASE NUMBER: MSC21-00679
CASE NAME: TABERNACLE BAPTIST VS TABERNACLE CHRISTIAN
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: TABERNACLE CHRISTIAN SCHOOLS, INC.
TENTATIVE RULING:

Before the court is Defendant's Motion for Attorneys' Fees and Costs, filed May 7, 2026. The Defendant originally sought \$659,532.50 in attorneys' fees and \$63,579.82 in costs, for a total of \$723,112.32. (Tabernacle Christian Schools, Inc.'s Memorandum of Points in Support of Motion for Attorneys' Fees and Costs, (Motion, page 2:7-8.) The motion is granted with some reductions.

The court grants the Defendant's Request for Judicial Notice as to Exhibits 1-4 only.

The Defendant argues it is entitled to recover reasonable attorneys' fees and costs under the Lease as the prevailing party. Specifically, Defendant argues it is entitled to recover fees under Section 25.04 of the Lease, Section 1021 of the Code of Civil Procedure (CCP), and Section 1717 of the Civil Code. Plaintiff does not oppose this argument in its Opposition.

The Court agrees with the Defendant. The Lease, the law and the fact of Defendant being the prevailing party in the litigation all support an award of reasonable attorneys' fees to the

Defendant. Code of Civil Procedure section 1032 provides the authority for an award of costs to the Defendant.

In its Opposition, Plaintiff argues that the costs are not reasonable and lists numerous reasons for taxing the attorneys' fees and costs prayed for in the moving papers. Opposition to Motion for Attorneys' Fees and Costs (Opposition, filed August 28, 2026.) In Reply, Defendant responded to the Plaintiff's arguments, but conceded a few items. (Tabernacle Christian Schools, Inc.'s Reply in Support of Motion for Attorneys' Fees and Costs (Reply), filed September 3, 2026.)

Plaintiff's arguments in Opposition are not persuasive and are answered by the Defendant's Reply. For example, the Church's own records showing that Attorney McIntosh did far more than merely "attend proceedings." Reply, at 7:9-27. The Plaintiff's own trial brief included the issue of Termite Analysis, arguing that the Defendant ignored demands for two years, and the Plaintiff's own witness testified about the issue at trial. (See Reply, 9:2-8.) The court finds that the expenditure of \$3,950 on Termite Analysis to be reasonable. Similarly, the court finds the expenditure of \$9,975 to prepare for the PMK Depositions of three designated witnesses each on different subjects "across the parties' 27 year relationship" to be reasonable. (See Reply, 9:13-19.) With regard to the Opposition to the Plaintiff's Motion for Summary Judgment/Adjudication, mock trial, trial brief, trial preparation, trial attendance, closing brief, proposed Statement of Decision, oral argument preparation, the court finds the Defendants' time and charges to be reasonable and necessary. The Plaintiff's arguments about double-billing are similarly unpersuasive. Paralegals and the services of an outside copying company, in this case, Quivx, are both needed to prepare and copy documents for attorneys' use.

Defendant conceded the striking of **\$15,290** comprised of:

- [1] **\$2,450**: the vaccine / mask audit and insurance research entries at Opposition 8:5-10.
- [2] **\$2,460**: work relating to the School's line of credit, promissory note and memorandum of lease matters,
- [3] **\$680**: two entries for Karen Seto for 8/13/21 non-profit status (\$200) and 5/23/22 for billing records written off (\$480)
- [4] **\$9,700**: ten Seto entries for work marked "Written Off" in billing system and not billed to school.

Reply, at 16:15-26.

After consideration of the papers and exhibits submitted to the Court, the Court agrees with the Defendant that the attorneys' fees and costs requested (minus the \$15,290) are reasonable and necessary expenses. The attorneys' and other professionals' hourly fees are well within the range for attorneys with the stated number of years' experience and expertise in Contra Costa County, and at the low end of the scale if one considers nearby Counties such as San Francisco or Santa Clara. The lead partner and main litigation attorneys on the case each have 32 years of experience

as lawyers. One of them, Mr. McIntosh, generously billed his time at 50% of his normal rate. (Declaration of Stephen Seto in Support of Tabernacle Christian Schools, Inc.'s Motion for Attorneys' Fees and Costs, (Seto Decl.) filed May 7, 2026, at ¶ 7.) The total number of hours spent, as reflected in the table below, given the scope of the litigation that was mounted in this case, is reasonable.

Timekeeper	Role	Admitted	Hours	Avg. Rate	Total
Stephen C. Seto	Partner / Lead trial counsel	1994	1,150.70	\$498.84	\$574,820.00
Bruce McIntosh	Co-counsel	1994	238.00	\$254.20	\$60,500.00
Karen B. Seto	Of Counsel	1994	11.90	\$485.71	\$5,780.00
Steven Wood	Partner	1992	8.00	\$475.00	\$3,800.00
Kelly M. Seto	Associate	2025	95.20	\$137.50 ¹	\$12,780.00
Luke Wood	Paralegal	—	24.70	\$75.00	\$1,852.50
TOTALS			1,528.50	\$431.46	\$659,532.50

(Table from Seto Decl., at 2:17-25.)

It is important to note the court finds no basis for the Plaintiff's across the board 50% reduction in fees and **denies** that request. Defendant prevailed on all claims.

The court awards Defendant the amount of **\$644,242.50** in attorneys' fees and **\$63,579.82** in costs and litigation expenses for a total of **\$707,822.32**, together with reasonable fees and costs incurred in preparing this motion.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-02059
CASE NAME: DEREK HOCKETT VS. CHRISTINA GARCIA JIMENEZ
*HEARING ON MOTION FOR DISCOVERY DEEM AS ADMITTED DEFENDANTS' REQUEST FOR
ADMISSION, SET ONE TO PLAINTIFF DEREK L. HOCKETT
FILED BY: GARCIA JIMENEZ, CHRISTINA B.
TENTATIVE RULING:

The Defendants' unopposed motion for an order Deeming Admitted all Requests for Admissions contained in Defendants' Request for Admissions, Set One, to Plaintiff DEREK L. HOCKETT is **granted**.

Defendants shall serve notice of entry of this Order on Plaintiff within 5 court days of this order.

18. 9:01 AM CASE NUMBER: C26-00396
CASE NAME: ALLYSON LONEY VS. SCOTT BERGEN
*HEARING ON MOTION FOR DISCOVERY STAY DISCOVERY
FILED BY: BERGEN, SCOTT
TENTATIVE RULING:

Before the court is the motion of Defendants Scott Bergen and Stokely Properties, Inc. (Defendants) for an Order Staying Discovery and Monetary Sanctions, filed August 11, 2026.

The court finds that moving party has not fulfilled its meet and confer obligation as to the instant motion. Moving party attached a letter describing the Plaintiffs' counsel's failure to meet and confer about a proposed Demurrer. However, the letter did not invite any meeting or conferring about a temporary stay on discovery pending the hearing of a demurrer. It simply recited that the Plaintiffs had previously refused to meet and confer about Plaintiffs' recently propounded discovery, demanded that the propounded Discovery be withdrawn, and threatened that if Defendants did not receive confirmation that the Discovery had been withdrawn, the Defendants would move for a protective order. See Exhibit A, attached to Declaration of Melissa Wood, filed August 11, 2026.

The court fails to see what is excessive, burdensome or oppressive about the Plaintiffs' currently propounded discovery requests. The Defendants list Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Admissions, Set One, and Request for Production of Documents, Set One. Defendants assert no complaint about the numerosity of the requests or their form.

The "prior action" was dismissed on October 24, 2023 by the Court's issuance of termination sanctions for the Plaintiffs' lack of compliance with Discovery. On November 8, 2024, this court denied the Plaintiff's motion to set aside the October 24, 2023 order pursuant to Section 473(b) of the Code of Civil Procedure. The case remained dismissed.

Plaintiffs filed the instant action on February 4, 2026.

Defendants assert that the currently propounded discovery is excessive because "it addresses claims that were pleaded in the Original Complaint that has been dismissed." (Memorandum of Points and Authorities in Support of Defendants' Motion to Stay Discovery and Monetary Sanctions, filed August 11, 2026, 4: 8-14.) The court notes that the prior action was not dismissed on its merits, but rather as part of a discovery sanction against the Plaintiffs for non-compliance. Plaintiffs observe that the prior action "was not dismissed with prejudice." That appears to be correct. There does not appear to be a reason why the terminating sanctions imposed for non-compliance with discovery in the prior action would preclude discovery in a refiled case.

The motion for a stay of discovery is **denied**. The request for sanctions is also **denied**.

Issue Conferences

19. 10:00 AM CASE NUMBER: C22-01881
CASE NAME: ALLYSON MCGEE VS. DOES 3-50
HEARING IN RE: INFORMAL DISCOVERY CONFERENCE
FILED BY:

TENTATIVE RULING:

Parties to appear.

Courtroom Clerk's Session

20. 1:30 PM CASE NUMBER: MSC22-00300
CASE NAME: AZAMEY VS CARAPIA
ISSUE CONFERENCE WITH THE COURT (ALL COUNSEL AND PARTIES WITH LEGAL AUTHORITY ARE
REQUIRED TO APPEAR IN PERSON
FILED BY:

TENTATIVE RULING:

Parties to appear.